

HOUSE No. 748

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas P. Walsh

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote healthy culture and climate within schools.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas P. Walsh</i>	<i>12th Essex</i>	<i>1/15/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>3/4/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>4/2/2025</i>

HOUSE No. 748

By Representative Walsh of Peabody, a petition (accompanied by bill, House, No. 748) of Thomas P. Walsh and Paul McMurtry that school administrators consider alternatives to suspension or expulsion of certain students. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 580 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote healthy culture and climate within schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law to the contrary, section 37 H ³/₄ of Chapter 71,
2 as so appearing in the 2022 Official Edition, is hereby amended by striking out section (b) and
3 inserting in place thereof the following section:-

4 (b) Any principal, headmaster, superintendent or person acting as a decision-maker at a
5 student meeting or hearing, when deciding the consequences for the student, shall consider ways
6 to re-engage the student in the learning process; and shall not suspend or expel a student until
7 alternative remedies have been employed and their use and results documented, following and in
8 direct response to a specific incident or incidents, including but not limited to direct threats,
9 unless specific reasons are documented as to why such alternative remedies are unsuitable or
10 counter-productive, except, however, in cases where the student's continued presence in school

11 would pose a specific, documentable concern about the infliction of serious bodily injury or
12 other serious harm upon another person while in school or has caused a significant disruption to
13 the learning environment for other students. Alternative remedies may include, but shall not be
14 limited to: (i) mediation; (ii) conflict resolution; (iii) restorative justice; and (iv) collaborative
15 problem-solving. The principal, headmaster, superintendent or person acting as a decision-maker
16 shall also implement school- or district-wide models to re-engage students in the learning
17 process which shall include but not be limited to: (i) positive behavioral interventions and
18 supports models and (ii) trauma-sensitive learning models; provided, however, that school- or
19 district-wide models shall not be considered a direct response to a specific incident.